SHERPHERD CHIWANZA
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 26 March 2025 and 11 February 2026

Bail Application Pending Trial

Applicant in person
M Manhamo, for the respondent

MUCHAWA J: On the 26th of March 2025, I dismissed a bail application pending trial wherein the applicant was a self-actor. On 19 November 2025 the applicant instructed legal practitioners who requested reasons for the dismissal of the appeal as they had been instructed to appeal against the bail refusal. Unfortunately, the request was not brought to my attention and was buried in the volumes of the documents generated under IECMS. It was only on 6 February 2026 that counsel for the applicant made a follow up. Below are my reasons for dismissing the application.

The applicant is facing allegations of robbery as defined in s 126 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The brief circumstances are that he connived with one Kadungure who is on the run and approached the complainant masquerading as police officers on 12 April 2024. The pair violently took the complainant's motor vehicle together with money amounting to USD 26000.00. The complainant's motor vehicle was later recovered on the Zambian side on 16 April 2024 and the applicant was positively identified by the complainant leading to his arrest.

In his application, the applicant submitted that he had no previous convictions and no pending court cases. He said he had no reason to abscond and pointed to the State's failure to complete investigations as at 28 December 2024 nor to provide a trial date. He claimed he could

not interfere with State witnesses who should have been interviewed by March 2025 from November 2024.

On teaming up with his co-accused to commit other offences, the applicant said there was no such possibility as his co-accused was no longer at large but was attending all court sessions from the beginning to date.

The State was opposed to the granting of bail on the grounds that the applicant was not a good candidate for bail as the chances of abscondment were high. This was because the offence was allegedly committed on 12 April 2024 but the applicant was only arrested on 15 October 2024 after the complainant identified him whilst walking in the street. The accomplice was yet to be accounted for.

The applicant's warned and cautioned statement in which he clearly explained how the offence was committed was attached to the response. It was argued that the chances of conviction were high and the applicant would be motivated to abscond as he is strongly linked to the commission of the offence.

It was also stated that the applicant was likely to face impersonation charges for misrepresenting that they were police officers.

The law on bail applications of this nature is derived firstly from s 50(1)(d) and s 70 of the Constitution of Zimbabwe (2013) where bail is a right unless there are compelling reasons to deny bail. s 115C of the Criminal Procedure and Evidence Act [*Chapter 9:07*] gives the onus on the prosecution to justify through compelling reasons why bail should be denied. Where, however, the offence, as *in casu*, is a third schedule offence, the applicant bears the burden of showing that it is in the interests of justice for him/ her to be released on bail.

Section 117 of the Criminal Procedure and Evidence Act then gives guidelines on what the court should consider in an application for bail. It is stated that it shall be in the interest of justice to deny bail where one or more of the following grounds are established as a likelihood.

(i) That the applicant will endanger public safety or a particular person or will commit an offence referred to in the First Schedule,

(ii) That he will not stand his or her trial or appear to receive sentence

(iii) That he will attempt to influence or intimidate witnesses or to conceal or destroy evidence, or

(iv) Undermine or jeopardize the objectives or proper functioning of the criminal justice system including the bail system.

In this case, the offence is a Third Schedule offence, robbery, and the applicant had the onus of showing that it is in the interests of justice for him to be released on bail. He failed to do so. I found that the applicant was not a good candidate for bail for the following reasons;

The applicant is likely to abscond as he was arrested some 6 months after commission of the offence as he was on the run.

It was my finding that the State has a strong case against him for the robbery charge as per his warned and cautioned statement in which he gives a detailed account of how the offence was committed.

It did not augur well for the applicant that the allegations against him point to another offence of impersonation as they misrepresented that they were police officers.

Due to the seriousness of the offence and the strength of the State case, upon conviction, the applicant is likely to face a lengthy imprisonment sentence which would induce abscondment.

I considered too that the complainant's motor vehicle was recovered on the Zambian side and that the applicant's accomplice is still unaccounted for. Through the applicant said he had been accounted for, no such evidence was availed. I concluded that the two of them would be tempted to regroup, even across borders, commit other offences or abscond.

The chances of interfering with State witnesses were highly likely.

Consequently, the applicant not being a good candidate for the granting of bail, I dismissed the application.

MUCHAWA J……

National Prosecuting Authority, State Counsel